2021 C L C 1165

[High Court (AJ&K)]

Before Muhammad Sheraz Kiani, J

Mst. SABA AKHTAR and others----Appellants

Versus

IMRAN ASHRAF and others----Respondents

Family Appeal No.146 and Civil Appeal No.150 of 2019, decided on 24th September, 2020.

(a) Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S.5, Sched.---Suit for dissolution of marriage---Cruelty---False allegation---Scope---Plaintiff filed suit for dissolution of marriage on the basis of cruelty, physical torture, desertion and that the defendant (husband) levelled allegation against her that she was physically and sexually unfit---Defendant, through his counsel, filed application that the plaintiff be directed to get herself medically examined and if she was declared sexually and physically fit with regard to her reproductive system, the suit filed by her be decreed---Trial Court, after recording the statements of the parties, referred the matter to the Medical Board, who declared the plaintiff as a healthy and fit woman in all respects---Trial Court decreed the suit---Contention of defendant was that he was abroad and was unaware of the proceedings---Validity---Defendant had given authority to his counsel by way of signing the vakalatnama to prosecute the case on his behalf---Act of counsel was always considered as act of the party---Analysis of the evidence proved that the defendant had lambasted and castigated the plaintiff and had made her life miserable and depressed---Allegation itself had caused great torture to the plaintiff---Appeal of defendant to such extent was dismissed.

Mohammad Sabeel Khan and another v. Saima Inshad 2014 SCR 718 and 2015 YLR 170 rel.

(b) Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S.5, Sched.---Suit for recovery of dower---Snatching of gold ornaments---Burden of proof---Scope---Plaintiff filed suit for recovery of dower amount---Perusal of nikahnama revealed that dower was fixed as Rs.2,70,000/- out of which 70,000/- was prompt dower (given in the shape of gold ornaments)---Plaintiff although claimed that the gold ornaments were snatched during matrimonial life, however, she failed to prove her claim, thus, the Trial Court had rightly decreed the suit to the extent of Rs.2,00,000/---Appeal of the plaintiff to such extent was dismissed.

(c) Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S.5, Sched.---Suit for recovery of maintenance allowance---Financial means of husband---Burden of proof---Scope---Plaintiff filed suit for recovery of maintenance allowance---Trial court fixed the maintenance at the rate of Rs.500/- per month from the date of her desertion till iddat period---Validity---Record showed that the defendant was working abroad and it was not brought on record by the defence side that he was not a man of good financial means---Trial Court while fixing the maintenance allowance had made an error and fixed a very meagre amount of Rs.500/- therefore, the maintenance allowance was liable to be enhanced and Rs.3000/- per month was just, fair and appropriate amount---Appeal of the plaintiff was accepted.

(d) Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S.5---Procedure of Family Court---Offer to adopt deviated procedure---Scope---If a party opts to adopt a deviated procedure and an order is passed on the basis of such offer, deviated procedure or undertaking, subsequently said party was not allowed to resile form such statement, undertaking, etc.

(e) Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S.5, Sched.---Suit for recovery of dower---Deferred dower---Scope---Nikahnama is a valid public document and it has got the presumption of correctness---Deferment of the payment of dower to a wife with her consent is not prohibited, but if in the column of deferred dower a stipulated period is not mentioned for the payment of dower, the wife is competent to demand dower from her husband, who is bound to pay dower to the wife, whenever it is demanded or in case of divorce, dower becomes payable instantly.

Dr. Sabira Sultana v. Maqsood Sulehri 2000 CLC 1384 rel.

(f) Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S.5, Sched.---Suit for recovery of dower---Deferred dower---Scope---Husband is bound to pay dower incorporated in nikahnama as deferred dower even on wife's demand if no specific time is fixed.

(g) Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S.5, Sched.---Suit for recovery of maintenance allowance---Financial status of defendant---Scope---Family Court may grant appropriate maintenance allowance according to the needs of the claimant and demands of justice in each case and there is no limit or fixed amount of maintenance---Financial position of the defendant is also to be considered.

Sardar Azhar Arif for Saba Sarwar for Appellant/Respondent.

Sardar Bilal Shakeel for Imran Ashraf, Appellant/Respondents.

JUDGMENT

MUHAMMAD SHERAZ KIANI, J.---The above titled appeals have been addressed against the judgment and decrees passed by Additional District

Judge/Judge Family Court, Rawalakot on 11.09.2019, hereby, the learned Court below has decreed the suits filed on behalf of Saba Sarwar.

2. Brief facts forming background of the appeals are that Saba Sarwar, plaintiff /appellant-respondent, herein filed (3) suits; one for dissolution of marriage, second for recovery of maintenance allowance, third for recovery of dower amount. It was stated that the marriage of the spouses was solemnized according to Sharia, on 16.04.2016, in lieu of Rs.2 70,000/- as dower and ornaments of Rs.70,000/- were given to the plaintiff at the time of Nikah, whereas, the other amount of Rs.200,000/- was termed as deferred dower. It was claimed that the plaintiff, after her marriage joined her husband and had been performing matrimonial obligations, however, the attitude of the defendant remained harsh and cruel with the plaintiff, few days after marriage. He started to abuse the plaintiff and beaten her and also tortured her mentally and finally, he deserted the plaintiff in August, 2017 while beating her and snatching the ornaments and since then, the plaintiff is residing with her parents, who have to bear her expenses. It is alleged that the defendant did not pay her maintenance during the desertion period because he wanted to contract second marriage, therefore, the defendant and his parents used to torture the plaintiff, physically and mentally. According to the plaintiff, when, she filed suits for recovery of dower and maintenance, the defendant contracted second marriage and also leveled allegation that the plaintiff is not a fit woman and due to this allegation she also suffered from heavy mental torture, therefore, the decrees for dower, maintenance and dissolution of marriage on the basis of cruelty be passed in favor of the plaintiff, she prayed.

3. The defendant/appellant/respondent, herein, resisted all the three suits by filing written statement, wherein, he refuted the claim of the plaintiff and stated that the deferred dower was also paid to the plaintiff in installments. He alleged that the plaintiff did not perform matrimonial obligations and refused to do so. The defendant claimed that he spent a considerable amount on marriage with her and he wants to rejoin the plaintiff but she does not agree. It is alleged that the plaintiff stated that she is unable to beget child and refused to perform marital obligations, therefore, she did not join the defendant. The defendant claimed that he is ready to get her illness treated, but she has refused to live with the defendant and get her treatment, it is alleged that she is non-productive woman; therefore, a prayer was made for dismissal of the suits.

4. The learned trial Court, in the light of the pleadings of the parties framed issues and directed the parties to lead evidence, however, on the completion of evidence of plaintiff, the learned counsel appearing on behalf of the defendant/appellant, herein, filed an application that the plaintiff be directed to get medically examined herself and if she is declared sexually and physically fit with regard to her reproductive system, the suits filed by her be decreed in her favor. Upon this application, the learned trial Court recorded statements of the parties and referred the matter to the Medical Board, who, submitted its report and declared the plaintiff/appellant, herein as a healthy and fit woman in all respects the Medical board consist of Dr. Muhammad Ashraf (Senior Specialist/President), Dr. Sadia Hanif (Gynecologist/member) and Dr.Tahira Shakar (Gynecologist/member) gave its opinion as under;-

"The above mentioned examination as well as other investigation showed that she is a normal adult female."

Upon this report, the learned trial Court decreed the suit for dissolution of marriage, on account of cruelty, torture and non-maintenance, decreed the suit for maintenance @ Rs.500/- from August 2017 till decision of the case and maintenance of Iddat period at the same rate. Decreed the suit for recovery of dower amount of Rs.2,00,000/-. The plaintiff/appellant, herein, has filed this appeal to the extent of enhancement in the maintenance allowance, whereas, Imran Ashraf, defendant/appellant, herein has sought abrogation and cancellation of all the decrees.

5. Sardar Bilal Shakeel Advocate, the learned counsel for Imran Ashraf, appellant, herein, while reiterating the contents of the appeal, contended that the plaintiff, opted to leave her house, with her free will and consent and she was never beaten or tortured by the defendant, therefore, the decree for dissolution of marriage has wrongly been decreed in favour of plaintiff. The learned counsel maintained that the learned trial Court also failed to consider the fact that the learned counsel for the defendant before the trial Court was not competent to move the application for decision on the basis of medical report of plaintiff. He submitted that the deferred dower was also paid to the plaintiff in installments and nothing is payable by the defendant, however, the learned Court below fell in grave error while granting the decree for recovery of dower. The learned counsel claimed that the defendant is, even now, ready and willing to resettle the plaintiff and maintain her, but, she is not willing to rejoin the defendant, therefore, she was not entitled to any maintenance.

6. On the contrary, Sardar Azhar Arif, Advocate, the learned counsel for Saba Sarwar plaintiff/appellant, herein, refuted the claim of the defendant and contended that the defendant leveled false and serious allegations upon the plaintiff/ appellant including that she is not a healthy and fit woman and she is non-productive, which, stood belied through medical examination. He contended that in this era of inflation and hikes in the prices of the utilities, it is impossible to maintain a person in Rs.500/- therefore, by accepting the instant appeal, the maintenance allowance for the desertion and iddat period be fixed as Rs.l0,000/- per month.

7. I have heard the learned counsel for the parties, perused the record and considered the controversy, carefully.

8. In the present case, the plaintiff/appellant, Saba Sarwar filed the suit for dissolution of marriage and has taken a stance that after marriage, the defendant/respondent-appellant maltreated her and also leveled allegation that she is not a complete woman and unable to perform matrimonial obligations. The learned counsel for the appellant/defendant, Imran Ashraf argued that the trial Court illegally and wrongly decreed the suit for dissolution of marriage after obtaining medical examination report of the plaintiff without considering the fact that at that time defendant was abroad and he was unaware of the proceedings, therefore, the decree for dissolution of marriage is liable to be set aside on this sole

ground. In this regard, it is observed here defendant has given the authority to his counsel by way of signing the Vakalatnama to prosecute the case on his behalf

including filing Iqbal dawa (cognovit), compromise and even for taking oath on behalf of the defendant/appellant therefore, the proceeding conducted by the trial Court are quite in accordance with law, as the act of the counsel is always considered an act of the party. It is further held that if a party opts to adopt a deviated procedure and an order is passed on basis of such offer, deviated procedure or undertaking, subsequently that party is not allowed to resile from such statement, undertaking etc. Furthermore, in her suit, the appellant/plaintiff, Saba Sarwar has also claimed that she has developed severe hatred towards the respondent/defendant due to his act of mental torture, non-payment of maintenance allowance and on the basis of false allegations. In support of her contentions, the plaintiff also appeared before the Court and recorded her statement wherein she affirms the contentions made in the suit. The relevant caption of her statement is usefully reproduced as under;-

Thus, in this view of the matter after overall analysis of the evidence produced by the parties, it is proved that the appellant lambasted and castigated her and made her life miserable and depressed. In my view if a plaintiff proves any of the grounds incorporated in section 2 of Dissolution of Muslim Marriages Act, 1939, that is sufficient to dissolve the marriage on the basis of that single ground even (cruelty, non-maintenance for 2 years etc.), therefore, in such circumstances the trial Court has rightly passed the impugned judgment and decree in accordance with law for dissolution of marriage of the basis of cruelty and non-maintenance. It is to be noted here that a wife is entitled to a decree for dissolution of her marriage if the husband treats her with cruelty or makes her life miserable, by cruelty or conduct even if such conduct does not amount to physical ill-treatment a mental/ verbal torture is considered as a cruel attitude of the husband. In the present case, to make allegation against a physically and sexually fit woman of being non-productive and that of incomplete women itself causes a great torture to that woman and in various judgments it has been held that even the mental torture also amounts to cruelty. In the case reported as "Mohammad Sabeel Khan and another v. Saima Inshad" (2014 SCR 718), wherein it was held as under:-

"The terms 'cruelty' with reference to matrimonial matters is to be judged within the parameters of statutory provision of section 2 of the Dissolution of Muslim Marriages Act, 1939, which speaks of different kinds and natures of cruelty. The term 'cruelty' is not only confined to physical assault or infliction of physical injuries rather it being a comprehensive terms as

elaborated in the statutory provisions which includes all types of cruelty which may be classified as legal, mental and physical."

It is further held in a case reported as 2015 YLR 170 that; -

"The cruel attitude is not confined only to the extent of physical violence, it includes the mental torture, hateful attitude of husband or other inmates of the house and also includes other circumstances, in presence of which the wife is forced to abandon the house of her husband."

8(sic) So far as the case with regard to recovery of dower is concerned, according to Nikah-nama at time of marriage, dower was fixed as Rs.2,70,000/- out of which Rs.70,000/ was fixed as prompt dower in shape of gold ornaments paid at the time of Nikah, while the remaining Rs.200,000/- was fixed as deferred dower and it is also proved from the record that the same remained as outstanding against the appellant. Although in her suit, the plaintiff claimed that the gold ornaments were also snatched during matrimonial life, however, she failed to prove her claim with regard to snatching of the same, thus, the learned trial Court has rightly dismissed her suit to this extent. Furthermore, to the extent of deferred dower, it is worthwhile to mention here that Nikah-nama is a valid public document and it got the presumption of correctness. The deferment of the payment of dower to a wife with her consent is not prohibited, but if in the column of deferred dower a stipulated period is not mentioned for the payment of dower, the wife is competent to demand dower from her husband, who is bound under law to pay dower to the wife whenever it is demanded or in case of divorce dower becomes payable instantly. In this regard reliance can be placed from a case titled "Dr. Sabira Sultana v. Maqsood Sulehri" 2000 CLC 1384 wherein it is observed as under;-

"Having heard the learned counsel, I find that notwithstanding the controversy, whether the dower is prompt or deferred, it is established that the dower is an exclusive right of the wife. However, there are no bounds to the quantity or value of the dower, which is left entirely to the will of the husband and wife. The payment of dower should be specified in such a manner so as to remove uncertainty and the payment of dower is not obliged to surrender her person till she receives her dower. However, the position may be changed after the marriage is consummated, but in any case, the dower being the property of the wife, she can insist for its payment and use as per her right and a husband cannot justifiably deprive her while withholding the payment of dower for an indefinite period on the ground that the dower was Muwajjal or deferred. The only difference of Muwajjal and Muajjal i.e deferred and prompt dower is that deferred dower is not payable till the arrival of stipulated period whereas prompt dower is payable immediately on demand and if for the payment of deferred no stipulated time is fixed, it would be treated as prompt, payable on demand. Thus, the only distinction between a prompt and deferred dower is that payment of prompt dower cannot be postponed without the consent of the wife, whereas the payment of deferred dower cannot be demanded before the stipulated period and a woman in such case is not at liberty to refuse the embraces of her husband as she has dropped her right of payment of dower till a specified time and if no

> specified time is fixed the dower described as deferred shall be prompt in nature to be paid on demand. The deferred dower without specification of period or stipulation, shall be payable at any time and if the same is deferred till a particular date or time, it shall not be payable before that date."

A contemplate perusal of the above mentioned case law reveals that a husband is bound to pay dower incorporated in "Nikahnama" as deferred dower even on wife's demand if no specific time is fixed and in the case in hand it became payable not only due to the demand of the plaintiff, but also on account of dissolution of marriage which is also equal to Talaq in practical sense. Thus, the trial Court has rightly decreed the suit for recovery of dower.

9. So far as the case with regard to the question; whether the maintenance allowance fixed in favour of appellant/ plaintiff 'is sufficient to meet her needs or is fixed while not considering the financial position of the appellant. In this regard the record shows that, it is proved that appellant is working abroad and it has not been brought on record by the defence side that he is not a man of good financial means. Under the provisions of the Family Courts Act, the Court may grant appropriate maintenance allowance according to needs of the claimant and demands of the justice in each case and there is no limit or fixed amount of maintenance. Although financial position of the defendant is also to be considered but in the case in hand it is not established that the prayed amount is beyond the financial means of the appellant/defendant.

10. Under Sharia, appellant being husband is duty bound to maintain his wife in such a manner that she could live in a respectable way. It may be stated that in this age of prices hike, continuous inflation in prices of household items, medical and transportation, clothing expenses etc. and keeping in view the overall circumstances of the case, I am of the view that the learned lower Court while fixing the maintenance allowance has made an error and fixed a very meager amount of Rs.500/- therefore, the maintenance allowance is liable to be enhanced and in my opinion Rs.3000/- p.m is just, fair and appropriate amount.

The case law referred to and relied upon by the learned counsel for the appellant are not applicable due to distinguishable facts.

Crux of the above discussion is that, I partly accept Appeal No.146 by modifying the impugned judgment and decree dated 11.09.2019 to the extent for recovery of maintenance allowance in the terms that appellant/plaintiff is entitled for maintenance allowance of Rs.3000/-p.m instead of Rs.500/- p.m from August, 2017 till institution of suit for dissolution of marriage. The other decrees i.e recovery of dower and dissolution of marriage are maintained as passed by the trial Court. Consequently, the appeal filed by the appellant, Imran Ashraf stands dismissed.

With the above modification, the appeals stand disposed of accordingly.

SA/53/AJK (HC) Order accordingly.

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